

TENTATIVE RULING

Case: **Bermudez v. Kia Motors America, Inc.**
Case No. CV2023-0867

Hearing Date: **April 28, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, plaintiff Mayra Bermudez's motion for attorneys' fees, costs, and expenses is **CONTINUED** to **June 9, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Hendrix v. Ebay Inc.**
Case No. CV2026-0240

Hearing Date: **April 28, 2026** **Department Fourteen** **9:00 a.m.**

Defendant eBay Inc.’s motion to compel arbitration and stay action is **GRANTED**. (Code Civ. Proc., § 1281 et seq.) “A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8.) Defendant has established the existence of an arbitration agreement between defendant and plaintiff Shannon Hendrix. (*Ibid.*; Code Civ. Proc., § 1281.2; Colin decl., ¶¶ 8-18, Exhibits A & B.) Plaintiff has failed to show that a defense exists, which would prevent the Court from compelling arbitration. (See *Jenks, supra*, Cal.App.4th at p. 8.) Specifically, plaintiff has not proven that plaintiff and defendant had an employer-employee relationship, or the arbitration agreement is procedurally and substantively unconscionable. (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329; *Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704; *Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1248; Colin decl., ¶¶ 3-9 & 13, Exhibit B, §§ 1, 18; Complaint, ¶¶ 3-10.) Further, plaintiff has not shown that leave to conduct discovery is warranted. (See *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412-413.)

As to defendant eBay Inc., this case is stayed, pending the completion of arbitration. (Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.